

**RESIDENTIAL TENANCIES ACT, 2006
LANDLORD AND TENANT BOARD**

File No. (T2): _____

B E T W E E N :

KELANI MAEMUNAT and JOSEPH OLADIMEJI

Applicants (Tenants)

– and –

**2866747 ONTARIO INC., o/a WEBER RENTAL PROPERTIES
(c/o SETH FAIK)**

Respondent (Landlord)

Rental Unit: Unit 2 – 360 Prospect Avenue, Kitchener, Ontario N2A 1E1

Landlord's address for service (per s. 3 of the tenancy agreement): 2315 Fischer Hallman Road,
New Dundee, Ontario N0B 2E0

TENANTS' WRITTEN SUBMISSIONS

Application about Tenant Rights (Form T2 — s. 29(1) / s. 22 — Noise)

I. OVERVIEW

These are the Tenants' written submissions on their application under section 29(1) of the Residential Tenancies Act, 2006 (the "Act"), alleging that the Respondent substantially interfered with the Tenants' reasonable enjoyment of the rental unit at Unit 2 – 360 Prospect Avenue, Kitchener, contrary to section 22, by failing to take reasonable steps to address persistent, sleep-depriving noise from the unit directly above — a unit in the same residential complex, also rented and managed by the Respondent.

This application is one of three related applications arising from the same tenancy, intended to be heard together: this T2 (noise), a companion application about maintenance (Form T6), and a companion application for the return of a key deposit (Form T1). The Tenants claim their moving costs and rent differential once, in the T6; they are not re-claimed here.

II. APPLICABLE LAW — SECTION 22

Section 22 of the Act provides:

“A landlord shall not at any time during a tenant’s occupancy of a rental unit and before the day on which an order evicting the tenant is executed substantially interfere with the reasonable enjoyment of the rental unit or the residential complex in which it is located for all usual purposes by a tenant or members of his or her household.”

Liability for another tenant’s conduct. A landlord’s obligation under section 22 is not limited to the landlord’s own acts. Where the substantial interference is caused by another tenant of the same landlord, the landlord has a positive obligation to take reasonable steps to address it. A landlord who is told of serious, ongoing interference by an occupant the landlord controls, and who fails to take reasonable and effective steps to stop it, is itself in breach of section 22. This is the approach reflected in the Board’s Interpretation Guideline 6 (Tenants’ Rights), which the Board applies in assessing whether a landlord met its obligation to respond to interference by another occupant. The question is not whether the landlord did something, but whether the landlord’s response was reasonable and effective in the circumstances.

Substantial interference. Not every disturbance is actionable; ordinary household sounds are not. But repeated, prolonged noise that deprives a household of sleep and the ordinary use of the unit — over many months, after repeated written complaints — is the paradigm of substantial interference with reasonable enjoyment.

Limitation. An application under section 29(1) must be made within one year after the conduct occurred (section 29(2)). The interference constituted an ongoing and recurring course of conduct that continued into March 2026 and therefore falls within the one-year limitation period; the principal period relied upon (September 2025 to April 30, 2026) is in any event well within time.

III. BACKGROUND AND PARTIES

The Applicants, Kelani Maemunat and Joseph Oladimeji, were the tenants of Unit 2. The Respondent, 2866747 Ontario Inc., operating as Weber Rental Properties (c/o Seth Faik), was the landlord. The tenancy ran from February 1, 2025 to April 30, 2026 at a monthly rent of \$1,800.

The unit directly above the Tenants (the “Upstairs Unit”) was, on the Respondent’s own correspondence, also rented and managed by the Respondent. The Respondent therefore possessed the enforcement mechanisms available to a landlord under the Act — including warnings, notices of termination where warranted, applications to the Board, mediation efforts, and other reasonable measures — to address persistent substantial interference by the occupants of the Upstairs Unit.

IV. THE NOISE DISTURBANCE

The Tenants complained of the noise from the Upstairs Unit, in writing and repeatedly, over the course of a year. The correspondence is indexed at Schedule A (Exhibits N-1 to N-11) and the chronology is set out at Schedule B:

On March 25, 2025, the Tenants reported that “the people living directly above us, the way they walk (stomping) has been unbearable” and that “the stomping needs to stop” (Exhibit N-1), and asked the Respondent to “do something about it” (Exhibit N-2).

By the autumn the disturbance was nightly. On September 23, 2025 at 11:15 p.m., the Tenants wrote that “the occupant above us has been stomping and running since” and that “we are supposed to be sleeping currently but we can’t due to the noise” (Exhibit N-3), following minutes later with: “We literally cannot sleep” (Exhibit N-4). On September 25, 2025 they reported that “someone has been running, stomping and hitting the floor for more than 30 minutes” and had done so the previous night as well (Exhibit N-6).

The disturbance persisted into 2026. On February 2, 2026, the Tenants sent what they described as their “third email regarding the ongoing noise disturbance,” noting the situation had “not” improved and that the noise — “whether it’s children running or heavy stomping” — had “made it extremely difficult” (Exhibit N-8). On March 13, 2026, just weeks before move-out, the Tenants described “4 grown adults living in that apartment, along with two kids, and they ALL stomp,” including a man “running down the stairs wearing heavy boots” (Exhibit N-11).

The fact that complaints were not made every day should not be interpreted as an absence of disturbance. Rather, the complaints represent snapshots of an ongoing condition that persisted throughout the tenancy and became significant enough on repeated occasions to prompt written reports.

Contemporaneous reliability. These complaints were made contemporaneously with the events they describe, and long before any litigation was contemplated. They therefore carry significant indicia of reliability and should be preferred to any after-the-fact attempt to minimize the extent of the disturbance.

V. THE RESPONDENT'S RESPONSE WAS NOT REASONABLE OR EFFECTIVE

The Respondent did not ignore the complaints, but its response fell short of what section 22 requires of a landlord who controls the offending unit. On September 24, 2025 the Respondent said it would “reach out to the unit above to remind them that noise must be kept to a reasonable standard, especially after 8 pm” (Exhibit N-5). The next day it wrote (Exhibit N-7):

“I sent them 2 messages and they have responded that they will do their best to keep the kids quiet. Other than that there is not much else we can do. You do have the option of contacting City Noise bylaw and reporting the noise.”

That response was inadequate in three respects. First, the only steps taken were informal “reminders” — the Respondent never escalated the matter through any meaningful enforcement mechanism available under the Act, despite being the landlord of the Upstairs Unit and despite receiving complaints over approximately one year. Second, the Respondent declared after only two messages that there was “not much else we can do,” and deflected responsibility onto the Tenants by suggesting they contact the City — effectively abandoning its own statutory obligation. Third, the disturbance continued for a further six months notwithstanding the “reminders,” demonstrating that the steps taken were not effective. As late as March 11, 2026 the Respondent’s best answer was that the Upstairs occupants “plan to purchase another carpet to help reduce the noise” (Exhibit N-10) — a tentative, future, voluntary measure floated a full year after the complaints began.

A landlord faced with a year of documented, sleep-depriving interference by its own tenant, who does no more than send two reminders and suggest the complainant call the City, has not taken reasonable steps within the meaning of section 22.

The Respondent’s own correspondence demonstrates that it recognized the complaints as legitimate. At no point did the Respondent suggest the Tenants were exaggerating, mistaken, or fabricating the issue. Instead, it repeatedly acknowledged the problem while failing to take effective steps to resolve it.

VI. SUBSTANTIAL INTERFERENCE ESTABLISHED

Sleep is a fundamental aspect of residential use. Repeated noise that prevents occupants from sleeping in their own home strikes at the very core purpose of a residential tenancy and constitutes one of the most serious forms of interference with reasonable enjoyment. That is what the evidence here describes.

The interference here was substantial on any view. It was not occasional or trivial: it was repeated, prolonged, and nocturnal, depriving the Tenants of sleep — “we literally cannot sleep” — and interfering with their ability to work from home. It was documented contemporaneously over a full year and acknowledged by the Respondent, who treated it as a real and continuing problem requiring management of the Upstairs Unit. The Tenants therefore submit that the Respondent substantially interfered with their reasonable enjoyment of the rental unit, contrary to section 22.

The Tenants do not suggest that ordinary household activity constitutes a breach of section 22. The issue is the duration, frequency, intensity, and persistence of the disturbance, together with the Respondent’s failure to take effective steps after repeated notice. The evidence demonstrates far more than occasional everyday noise: it demonstrates an ongoing condition that repeatedly deprived the Tenants of sleep over many months.

VII. CUMULATIVE EFFECT — WHY THE TENANTS LEFT

The noise is also relevant to the Tenants' decision to end the tenancy. By the final months of the tenancy the unit was, in combination, intolerable: the water intrusion and mould remained unremedied (the subject of the companion T6), and the Upstairs noise made ordinary sleep impossible. The Tenants' noise complaints in February and March 2026 — some of the last correspondence before the Form N11 — confirm that the unit remained unfit for ordinary residential use right up to move-out. It was the combination of these unresolved conditions that led the Tenants to agree to end the tenancy and relocate.

While the noise alone warrants relief under section 22, the Board may also consider the cumulative impact of the unit's multiple unresolved problems — the maintenance conditions in the companion T6 together with the noise — when assessing the severity of the interference and the appropriate remedy. To be clear, the Tenants do not claim their moving costs or rent differential in this T2; those amounts are sought once, in the T6.

VIII. THE RESPONDENT HAD ACTUAL KNOWLEDGE — AND ITS RESPONSE WAS INADEQUATE

The Respondent cannot claim ignorance of the problem. The complaints were repeated, detailed, contemporaneous, and made over approximately one year, and the Respondent acknowledged receiving them and responded directly. Knowledge is therefore established on the Respondent's own evidence.

The Respondent's own correspondence confirms that its response consisted primarily of informal reminders — it “sent 2 messages” and concluded there was “not much else we can do” (Exhibit N-7). No evidence has been produced of any warning under the Act, notice of termination, inspection or investigation, mediation effort, application to the Board, or any other substantive intervention directed at the Upstairs Unit. If such enforcement efforts existed, one would expect documentary evidence of them; none has been produced. The Board is asked to infer from that absence that no meaningful enforcement step was ever taken, and that the Respondent's response fell short of the reasonable steps section 22 requires.

The consistency of the Tenants' complaints over a one-year period, coupled with the Respondent's repeated acknowledgements of the issue, strongly corroborates the reliability of the Tenants' evidence. The Tenants did not rush to legal remedies: they repeatedly reported the problem to the Respondent and afforded it ample opportunity to resolve the matter before any application was brought. The documentary record is supplemented by the Tenants' testimony and the exhibits filed in support of this application.

IX. REMEDIES SOUGHT

Pursuant to section 31 of the Act, the Tenants seek:

- (A) **Abatement of rent.** The Tenants seek an abatement of no less than 20% of the monthly rent. At a rent of \$1,800 per month, 20% is \$360 per month; over the approximately eight-month period of substantial interference (September 2025 to April 30, 2026), that is approximately \$2,880. The Tenants therefore seek a rent abatement of approximately \$2,880 — representing 20% of the monthly rent over the period of substantial interference — or such other amount as the Board considers appropriate having regard to the severity, frequency, and duration of the interference (which deprived the Tenants of sleep, night after night) and the inadequacy of the Respondent's response, subject to the one-year recovery limit in section 29(2).
- (B) **General damages.** General damages of \$750.00. The amount sought is deliberately modest. It reflects the prolonged sleep deprivation, stress, and frustration the Tenants endured, and the interference with their ability to enjoy their home and to work from home, over many months — losses that are distinct from the loss of use of the unit compensated by the abatement, such that no double recovery arises. The effects of the chronic loss of sleep were not confined to the home: the Applicant Joseph Oladimeji's daytime functioning was impaired to the point that the disturbance cost him a job interview — a concrete illustration that the interference reached beyond mere discomfort and affected the Tenants' wider lives.
- (C) **Application filing fee.** Reimbursement of the applicable T2 application filing fee paid by the Tenants, in accordance with the Board's usual practice.
- (D) **Further relief.** Such further and other relief as the Board considers just.

ALL OF WHICH IS RESPECTFULLY SUBMITTED.

Dated: _____, 20____

Jean-Francois Demers, Licensed Paralegal
LSO #P22020 — Legal Assist Paralegal Services
Paralegal for the Applicants (Tenants)

TO:

Damian Cordaie, B.A., Licensed Paralegal — LSO #P15586, Cordaie Paralegal Services
180 Northfield Dr. West, Unit 4, Waterloo, Ontario N2L 0C7 — Paralegal for the Respondent

AND TO: Landlord and Tenant Board

SCHEDULE A — INDEX OF EXHIBITS

Email times are as shown in the parties' correspondence.

Exhibit	Description	Date	Source
N-1	Email, Tenant to Landlord — stomping above “unbearable”; “the stomping needs to stop”	Mar 25, 2025 9:06 pm	Disclosure
N-2	Email, Tenant to Landlord — “please, do something about it”	Mar 25, 2025 9:13 pm	Disclosure
N-3	Email, Tenant to Landlord — stomping/running at night; “we can’t [sleep] due to the noise”	Sep 23, 2025 11:15 pm	Disclosure
N-4	Email, Tenant to Landlord — “We literally cannot sleep”	Sep 23, 2025 11:17 pm	Disclosure
N-5	Email, Landlord to Tenant — will “remind” unit above; “especially after 8 pm”	Sep 24, 2025 3:56 pm	Disclosure
N-6	Email, Tenant to Landlord — running/stomping “more than 30 minutes”; recurring	Sep 25, 2025 12:27 pm	Disclosure
N-7	Email, Landlord to Tenant — “sent 2 messages ... not much else we can do ... contact City Noise bylaw”	Sep 25, 2025 4:24 pm	Disclosure
N-8	Email, Tenant to Landlord — “third email”; ongoing; “extremely difficult”	Feb 2, 2026 6:07 pm	Disclosure
N-9	Email, J. Oladimeji to Landlord — occupants “can’t be reasoned with”	Mar 10, 2026 11:23 am	Disclosure
N-10	Email, Landlord to Tenant — occupants “plan to purchase another carpet”	Mar 11, 2026 5:18 pm	Disclosure
N-11	Email, J. Oladimeji to Landlord — “4 grown adults ... two kids ... all stomp”; “heavy boots”	Mar 13, 2026 10:42 am	Disclosure

SCHEDULE B — CHRONOLOGY

Drawn from the parties' contemporaneous correspondence (Schedule A).

Date	Event
Mar 25, 2025	Tenants report stomping above “unbearable”; ask Landlord to act (N-1, N-2).
Sep 23, 2025	Night-time stomping/running; “we literally cannot sleep” (N-3, N-4).
Sep 24, 2025	Landlord: will “remind” the unit above re noise after 8 pm (N-5).
Sep 25, 2025	Tenants: 30+ minutes of running/stomping (N-6). Landlord: “sent 2 messages ... not much else we can do ... contact bylaw” (N-7).
Feb 2, 2026	Tenants’ “third email”; situation not improved; “extremely difficult” (N-8).
Mar 10–11, 2026	Tenants: occupants unreasonable (N-9). Landlord: occupants “plan to purchase another carpet” (N-10).
Mar 13, 2026	Tenants: four adults + two children, all stomping; man running downstairs in heavy boots (N-11).
Apr 30, 2026	Tenancy ends; Tenants vacate (conditions unresolved).